

following classes: *First*, where an *owner* or person legally and equitably entitled makes a conveyance, devise, or be-

*v. Jewell*, 18 N. H. 340; 45 Am. Dec. 371; *Smith v. Smith*, 85 Ill. 189; *Smith v. Patton*, 12 W. Va. 541; *Somers v. Overhulser*, 67 Cal. 237; *Clark v. Clark*, 43 Vt. 685; *Frederick v. Haas*, 5 Nev. 389; *Springer v. Springer*, 114 Ill. 550. If a partial payment is made, it must be a definite aliquot part of the purchase-price; *Olcott v. Bynum*, 17 Wall. 44; *Thalman v. Canon*, 24 N. J. Eq. 127; *McGowan v. McGowan*, 14 Gray, 119; 74 Am. Dec. 668; *Fickett v. Durham*, 109 Mass. 422; *Snow v. Paine*, 114 Mass. 526; *Bresnihan v. Sheehan*, 125 Mass. 13; *Sayre v. Townsend*, 15 Wend. 647; *Baker v. Vining*, 30 Me. 121; *Green v. Drummond*, 31 Md. 71; *Smith v. Burnham*, 3 Sumn. 435; *Cutler v. Tuttle*, 4 C. E. Greene, 549; *Sanderson v. McKercher*, 13 A. R. (Ont.) 561. It has been held that, in the absence of proof, there is a presumption that joint purchasers paid equal amounts; *Shoemaker v. Smith*, 11 Humph. 81; if it appears that the payments by the parties are unequal, the trust results to them proportionately; *Buck v. Swazey*, 35 Me. 41; *Kelley v. Jenness*, 50 Me. 455; *Baumgartner v. Guessfeld*, 38 Mo. 36; *Hall v. Young*, 37 N. H. 134; *Botsford v. Burr*, 2 John. Ch. 406; *Pierce v. Pierce*, 7 B. Mon. 433; *McDonald v. McDonald*, 24 Ind. 68.

*Purchaser having a fiduciary character.*—If a trustee purchases with trust funds and takes the title to himself a trust results to his beneficiary; *McLarren v. Brewer*, 51 Me. 402; *Handcock v. Titus*, 33 Miss. 224; *Neill v. Keese*, 13 Tex. 187; 51 Am. Dec. 746; *Moffitt v. McDonald*, 11 Hump. 457; *Sutherland v. Meehan*, 3 Pug. (N. B.) 239; likewise if a guardian purchase with money of his ward; *Bancroft v. Consen*, 13 Allen, 50; *Lee v. Fox*, 6 Dana, 171; *Coles v. Allen*, 64 Ala. 98; *Broyles v. Nowlin*, 59 Tenn. 191; but not if the guardian uses his own money; *Johnson v. Dougherty*, 3 Green. Ch. 406; *French v. Sheplor*, 83 Ind. 266; 43 Am. Rep. 67; *Kisler v. Kisler*, 2 Watts, 323. A trust will result if an executor or administrator purchase in his own name with estate funds; *Wallace v. Duffield*, 2 Serg. & R. 521; 7 Am. Dec. 660; *Dodge v. Cole*, 97 Ill. 338; *Harper v. Archer*, 28 Miss. 212; *Barker v. Barker*, 14 Wis. 131; likewise if an agent purchase in his own name with funds of his principal; *Church v. Sterling*, 16 Conn. 388; *Cookson v. Richardson*, 69 Ill. 137; *Chastain v. Smith*, 30 Ga. 96; *Crocker v. Crocker*, 31 N. Y. 507; 88 Am. Dec. 291; *Hall v. Sprigg*, 7 Martin, 243; 12 Am. Dec. 506; *Brown v. Dwelley*, 45 Me. 52; *Safford v. Hynds*, 39 Barb. 625; *Smith v. Boquet*, 27 Tex. 507; *Pindall v. Trevor*, 30 Ark. 249; but not if agent uses his own money; *Nestal v. Schmid*, 29 N. J. Eq. 458; *Burden v. Sheridan*, 36 Ia. 125; 14 Am. Rep. 505; see also *Rose v. Hayden*, 35 Kan. 106; 57 Am. Rep. 145; or trustees of a corporation; *Church v. Wood*, 5 Ham. 283; or guardians or trustees of lunatics; *Hamnett's App.* 72 Pa. St. 337; *Reid v. Fitch*, 11 Barb. 399; *Stratton v. Dialogue*, 16 N. J. Eq. 70; or a partner purchasing in his own name with firm funds; *Lefevre's App.* 69 Pa. St. 122; 8 Am. Rep. 229; *Jenkins v. Frink*, 30 Cal. 586; *Philips v. Crammond*, 2 Wash. C. C. 441; *Richards v. Manson*, 101 Mass. 482; *Trephagen v. Burt*, 67 N. Y. 30; or if a husband purchase in his own name with the separate funds of his wife; *Pritchard v. Wallace*, 4 Sneed, 405; 70 Am. Dec. 254; *Sasser v. Sasser*, 73 Ga. 275; *Rupp's App.* 100 Pa. St. 531; *Goldsberry v. Gentry*, 92 Ind. 193; *Boyer v. Libey*, 88 Ind. 235; *English v. Law*, 27 Kan. 242; *Tilford v. Torrey*, 53 Ala. 120; *Woodford v. Stephens*, 51 Mo. 443; *Fischbeck v. Gross*, 112 Ill. 208; *Bigley v. Jones*, 114 Pa. St. 510; but not if money did not belong to her separate estate; *Modrell v. Riddle*, 82 Mo. 31; nor if he use his own money, intending to replace it with hers after-